



Rule 2.86—Form 2: Application to Expunge Misdemeanor Court Records under Iowa Code section 901C.3

Note: This form is for expunging **misdemeanor convictions**. Rule 2.86—Form 1 is used to expunge criminal case records where the defendant was acquitted or the charges were dismissed. **Obtaining the advice of counsel is recommended.** Each individual is only allowed one Iowa Code section 901C.3 expungement in the individual's lifetime. If you have multiple misdemeanor convictions, choosing which to expunge may be a difficult strategic decision.

In the Iowa District Court for Johnson **County**

County where you are filing this Application

State of Iowa or _____

vs.

Alexandra Catherine Montgomery-Example
Defendant

Case no(s). _____

EXAMPLE-901C3-BOUNDARY

**Application to Expunge Misdemeanor
Court Records under Iowa Code section
901C.3**

If you need assistance to participate in court due to a disability, call the disability coordinator (information at www.iowacourts.gov/for-the-public/ada). Persons who are hearing or speech impaired may call Relay Iowa TTY (1-800-735-2942). **Disability coordinators cannot provide legal advice.**

Defendant respectfully applies to the court for an order expunging the misdemeanor court records in the above-captioned case (or cases) pursuant to Iowa Code section 901C.3. In support of this application, Defendant acknowledges that the following statements are true and correct to the best of Defendant's knowledge:

Read, complete, and check each item if you agree.

1. Defendant's personal information:

Current legal name:

Alexandra

Full first name

Catherine

*Full middle name
(write "N/A" if none)*

Montgomery-Example

Full last name

All other names ever used (including any other previous legal names and nicknames):

Alex

Full first name

N/A

*Full middle name
(write "N/A" if none)*

Example

Full last name

☐ *Check this box if you have attached a sheet with additional alternate names.*

Personal identifying information:

04 - 12 - 1988

*Date of birth
(month/day/year)*

EXAMPLE0001

Driver's license number

000 - 12 - 0001

Social Security number



2. ☒ Defendant has not been granted a prior Iowa Code section 901C.3 expungement.
3. ☐ This expungement application involves related cases, and Defendant seeks the expungement of the misdemeanor court records in all of following cases that arise out of the same transaction or occurrence: *See Iowa Code § 901C.3(3).*
-
-
-

☐ Check this box if you have attached a sheet with additional information.

NOTE: You must file this application **separately in each of these cases.**

4. ☐ The misdemeanor criminal convictions covered by this application are eligible for expungement. **NOTE:** *Convictions under Iowa Code sections 123.46, 123.47(3) (or similar local ordinance), 235B.20, 321.218, 321A.32, 321J.21, 321J.2, 707.5, 708.2(3), 708.2A, 708.7, 708.11, 708.12, 716.8(3) and (4), 721.2, 721.10, 723.1; chapters 717C, 719, 720, 721.2, 724, 726, 728, and 901A; and a sex offense as defined in section 692A.101 are **ineligible**.*
5. ☒ All court costs, fees, fines, restitution, and any other financial obligations ordered by the court or assessed by the clerk of district court in relation to the misdemeanor convictions covered by this application have been paid in full.
6. ☒ More than eight years have passed since the date of the misdemeanor convictions identified in section 3.
7. ☒ Defendant has no pending criminal charges. **NOTE:** *For purposes of this question, a “criminal” charge means any public offense as defined in Iowa Code section 692.1.*
8. ☐ Defendant has not previously been granted more than one deferred judgment. *All charges as to which a deferred judgment was granted at the same time are considered one deferred judgment.*
9. ☐ Defendant has attached an official Division of Criminal Investigation Iowa criminal history records check dated within the past 30 days of the filing of this application. *Defendants must obtain their criminal history by submitting form DCI-77 with a release authorization signature. Additional information regarding obtaining the records check can be found at: <https://dps.iowa.gov/divisions-iowa-department-public-safety/iowa-division-criminal-investigation/criminal-history-record-check-information>.*

Read Before Signing

Please check each statement below after you have read it.

- ☒ I **understand** that I must provide a copy of this application to the county attorney.
- ☒ I **understand** that if I file this application to expunge multiple cases, all cases must be related to the same transaction or occurrence.
- ☒ I **understand** that Iowa Code section 901C.3 only permits me one misdemeanor expungement in my lifetime.
- ☒ I **understand** that the records in a criminal case expunged under this section are confidential and exempt from public access under Iowa Code section 22.7, but the clerk of district court may make the records available upon court order.



Signature

Check one

A. ☐ Defendant is self-represented.

If you check **A**, you must fill in the following information:

I, Alexandra Catherine Montgomery-Example, have read this Application, and I certify

Print your full name: first, middle, last

under penalty of perjury and pursuant to the laws of the State of Iowa that the information I have provided in this Application is true and correct.

_____, 20____
*Month Day Year Self-represented defendant's signature**

9999 Example Heritage Boulevard, Apartment 1234

Mailing address

University Heights, IA 52246-1234
City State ZIP code

(319) 555-0199 alexandra.montgomery.example@example.org
Phone number Email address

**This form may be signed either by using a digitized signature, see instructions at <https://www.iowacourts.gov/for-the-public/court-forms/>, or by printing and hand-signing.*

B. ☐ Defendant's attorney is filing this Application on behalf of Defendant after discussing the contents of this Application with Defendant.

If you check **B**, you must fill in the following information:

_____, 20____
Month Day Year Attorney's signature

Name of law firm, if applicable

Mailing address

_____, _____, _____
City State ZIP code

(_____) _____
Phone number

Email address _____
Additional email address, if applicable

Certification of Service by Mailing or Delivery

If you cannot find your case on the Iowa Judicial Branch eFile System, proceed with filing your application in paper at the county clerk of court office. You must fill out the below and mail or hand deliver a copy of this application to the county attorney of the county in which you are filing this application.

I, _____, certify that on _____, 20____,
Print your full name: first, middle, last Month Day Year

I mailed or gave a copy of this Application to the county attorney at this address:

Name of person to whom I delivered or mailed it

_____, _____, _____
Mailing address City State ZIP code

Iowa misdemeanor expungement: next steps

Alexandra Catherine Montgomery-Example | Johnson County | EXAMPLE-901C3-BOUNDARY

1. Review the packet before you use your one opportunity

This packet is for Alexandra Catherine Montgomery-Example, Johnson County, existing case EXAMPLE-901C3-BOUNDARY. It contains all three official Form 2 pages, including the service certification on page 3, and these instructions. Separate these instructions before filing.

No official returned DCI history report, proposed order, notarization, DCI request form or billing form is included. You must add your actual returned history report before filing. This draft is not a fully assembled filing and is not a grant of expungement. All personal facts, identifiers and case numbers here are synthetic examples. DO NOT FILE THESE EXAMPLES.

Section 901C.3 permits only one grant in a lifetime, with a limited same-transaction exception for multiple misdemeanors. Get legal advice before choosing among multiple convictions. This self-help build supports one case, not the legal determination that several cases arise from the same transaction.

2. Obtain the returned history report, not just a request form

Your reported history status is available; issue date 2026-08-08; age at intended filing 30 days; signed release reported completed. These answers are not proof of any report content or attachment.

Your reported dates are within 30 days of the intended filing date and you report signing the release. Personally verify the actual returned report and attach it. Item 9 remains blank because this generated PDF does not contain that report.

Form 2 requires an official DCI Iowa criminal history records check dated within the past 30 days of filing. Submit DCI-77 with your release-authorization signature and the required DCI-76 payment form for the chosen mail/fax procedure. DCI charges \$15 per last name. The request form, billing form and payment receipt are not the returned history report. Do not attach a blank request in its place.

DCI accepts the documented mail/fax/in-person procedures. Mail to DCI Support Operations Bureau, 215 East 7th Street, Des Moines, IA 50319; fax 515-725-6080; questions 515-725-6066. DCI reports mail/fax processing ordinarily takes 1-3 days after receipt, not a guaranteed delivery date. Use the current DCI instructions for payment, identification and all names. LegalEase does not request, inspect or authenticate your returned history.

Recheck the age against the actual filing date, not the build date. Day 30 is within the modeled limit; day 31 is not. A delayed filing can make a previously timely report stale. After you have physically/electronically attached the actual report to your filing and reviewed it, complete item 9 truthfully.

3. Confirm the exact conviction and the waiting period

Supplied conviction: Theft in the fifth degree, Iowa Code 714.2(5), entered 2017-09-06. Eight-year anniversary: 2025-09-06. Intended filing: 2026-09-07. The clock runs from conviction, not sentence completion or payment.

Item 6 is marked from supplied dates because the intended filing date is later than the eighth anniversary. Reconfirm those dates before signing.

This is the misdemeanor-conviction route, not dismissal/acquittal, deferred judgment, public intoxication, underage possession or felony-conviction relief. You must have no pending criminal charges anywhere, no prior 901C.3 grant, not more than one counted deferred-judgment proceeding, and all financial obligations in this case paid. Ask the clerk for the actual case balance. Separate civil room-and-board fees under section 356.7 are treated separately by Rule 2.83(3).

Review the full 2026 section 901C.3(2) list before personally checking item 4. It excludes sections 123.46, qualifying 123.47(3)/local offenses, 321.218, 321A.32, 321J.21, 321J.2, sex offenses defined in 692A.101, 707.5, 708.2(3), 708.2A, 708.7, 708.11, 708.12, 716.8(3)/(4), 721.2, 721.10, 723.1; chapters 717C, 719, 720, 724, 726, 728 and

Iowa misdemeanor expungement: next steps

Alexandra Catherine Montgomery-Example | Johnson County | EXAMPLE-901C3-BOUNDARY

901A; specified comparable federal commercial-driver offenses and comparable offenses under prior law. The form also lists 235B.20; that source/statute discrepancy remains a legal-review hold for that category, not a reason to certify it eligible.

4. Finish the genuine choices and execution blanks

Item 3 is not selected because only one case and no related cases were supplied. Do not infer relatedness from similar case numbers. Multiple same-transaction cases require legal assistance and separate filing in every case. No related-case sheet is attached.

Personally review and complete item 4 (eligibility) and item 8 (deferred-judgment count). You reported 1 counted proceeding(s), but the form assertion remains your legal judgment. Charges deferred at the same time count as one. Do not check an unknown or untrue statement.

No extra alternate-names sheet is attached. Your one supplied alternate name is entered on page 1.

Check all prepared identity and contact entries against your actual information.

Choose signature election A for self-representation, enter the actual signing date and sign under penalty of perjury. The printed full name is not a signature. The attorney election and block B remain blank. Follow the court instructions for a permitted digitized signature or print and hand-sign; no notary or proposed order is supplied. Keep SSN, birth date, history and other personal data private and follow the court confidential-filing instructions.

5. File in the existing case and serve the county attorney

eFile selected: use the Iowa Judicial Branch eFile System in the existing Johnson County case. Upload the signed application with the real DCI report and any alternate-names sheet. Confirm acceptance and electronic service on the county attorney. An upload alone proves neither.

The paper certification remains blank. If electronic service does not reach the county attorney, resolve service with the clerk or legal assistance instead of falsely certifying delivery.

For paper service, enter the actual mailing/delivery date in the embedded certification only after service occurs. Follow clerk instructions for returning that certification. Keep the filed packet, filing acceptance and service proof. The county attorney may respond within 20 days after service unless otherwise ordered (Rule 2.83). A hearing may be set; silence is not an order.

6. Costs, outcome and when self-help stops

University of Iowa Student Legal Services reports no filing fee for an expungement request. Verify any case-specific charge with the clerk. No application-fee election or invented fee-waiver form is included. DCI record fees, copies and postage are separate from both filing and original case debt.

Seek legal help for contested eligibility, opposition, immigration consequences, multiple convictions/related cases, uncertain prior relief or deferred judgments, pending charges, disputed debt, prior-law/federal comparability, or the retained 235B.20 discrepancy. Do not miss court dates or deadlines while seeking help.

If granted, the court record becomes confidential under section 22.7 and may be made available by court order. Section 901C.3(5) separately requires the court to order removal of that conviction history from DPS files and prohibit further dissemination. That is not destruction of every record or a guarantee that every private background report updates. Keep the actual order and check court/DPS implementation.

Iowa misdemeanor expungement: next steps

Alexandra Catherine Montgomery-Example | Johnson County | EXAMPLE-901C3-BOUNDARY

Sources and official assistance

Iowa Code 901C.3 (2026); Rule 2.86 Form 2 (August 2024); Iowa Rules 2.80, 2.81 and 2.83. Use the official sources and your actual court notices. This packet is not legal advice or a court eligibility decision.

<https://www.legis.iowa.gov/docs/code/2026/901C.3.pdf>

<https://www.iowacourts.gov/collections/867/files/1965/embedDocument/>

<https://dps.iowa.gov/divisions-iowa-department-public-safety/iowa-division-criminal-investigation/criminal-history-record-check-information>

<https://www.iowacourts.gov/efile>

<https://studentlegal.uiowa.edu/know-the-law/criminal-law/expungement>